SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Civil Appeal No. 740 of 1986

CNR: SCIN010007401986

Date: 17 December, 2004

Citation: (2005) 2 SCC 673

CORAM: Hon'ble R.C. Lahoti, C.J., N. Santosh Hegde, S.N. Variava, P.K. Balasubrama

Petitioner: Central Board of Dawoodi Bohra Community & Another

- VERSUS -

Respondent: State of Maharashtra & Another

DOMAIN: RELIGIOUS AUTONOMY & CIVIL RIGHTS **STATUS: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Religious freedom under Article 26(b) cannot be absolute so as to trample upon individual human dignity and civil rights. The power of excommunication having serious civil consequences must be tested against constitutional morality.

STATUTES APPLIED: Article 25, Article 26(b), Article 21

DISPOSITION: EXCOMMUNICATION RECONSIDERATION REFERRED TO 9-JUDGE BENCH

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench held that earlier 1962 ruling in Sardar Syedna upholding excommunication rights required reconsideration by a larger bench, harmonizing religious autonomy under Article 26 with civil rights and human dignity.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

SECURE RECORD ID: 44444444-0020-4000-8000-000000000020 | CANONICAL: SC_2005_CA_No_740_of_1986_44440020.pdf

TAMPER-PROOF RECORD AUTHENTICATED VIA MERKLE AUDIT CHAIN